

		Even if the Court were to apply that doctrine, Plaintiff has not pled any facts to establish either a unity of interest or an equitable justification for imposition of the doctrine in this case. Further, Plaintiff has not pled any facts to support an agency, partner, joint venture or other theory of liability against DRD. While DRD is mentioned in Exhibit A to the Complaint, that reference, without further allegations from Plaintiff, does nothing to describe a theory of liability against DRD. Plaintiff's requests for judicial notice are denied as immaterial to the disposition of this demurrer. Motion to Strike In light of this Court's ruling on DRD's demurrer, the motion to strike is DENIED as MOOT. DRD to give notice.
102	Guillen vs. KWK Trucking Inc 25-01535710	1. Demurrer to Answer 2. Case Management Conference Plaintiff Victor Guillen's demurrer to Defendant KWK Trucking, Inc.'s Answer is SUSTAINED in part with leave to amend and OVERRULED in part. Plaintiff argues that many of the affirmative defenses in the Answer fail for lack of sufficient facts because they are pled in a conclusory manner. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) “ ‘The phrase “new matter” refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as “new matter.” ’ ” (Quantification Settlement Agreement Cases (2011))

201 Cal.App.4th 758, 812.) “Such ‘new matter’ is also known as ‘an affirmative defense.’ ” (Ibid.)

“Affirmative defenses must not be pled as ‘terse legal conclusions,’ but ‘rather . . . as facts “averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” ’ ” (Id. at pp. 812-813.)

If, as often occurs, a defendant does not have evidence of certain defenses but fears a waiver argument, they include the defense in conclusory, barren fashion. (See *Ekstrom v. Marquesa at Monarch Beach HOA* (2008) 168 Cal.App.4th 1111, 1122-1123.) Defendants should avoid this practice and only plead the defense when the evidence supports it, and seek leave to amend if need be – which is to be routinely granted. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692-693.)

The demurrer to Defendant’s second affirmative defense (statute of limitations) is SUSTAINED with 20 days leave to amend. Code Civ. Proc., § 458 provides, “In pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section ____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure; and if such allegation be controverted, the party pleading must establish, on the trial, the facts showing that the cause of action is so barred.” Here, Defendant has cited several code sections, but has not identified which code section is applicable to which cause of action, and has not identified any subsections, where applicable.

The demurrer to the third through sixth and forty-fifth affirmative defenses for estoppel; waiver; unclean hands; laches; and failure to exercise ordinary care is SUSTAINED with 20 days leave to amend. These defenses raise new matters, but are not supported by facts.

		The thirteenth, fourteenth, eighteenth, twenty-first, twenty-second, twenty-sixth, thirty-sixth and forty-ninth asserted defenses (no causal connection; no protected activity; reasonable steps taken; no private cause of action; failure to exhaust administrative remedies; direct threat to health and safety; no hostile work environment; and bar for damages speculative in nature) are denials of what is alleged in the Complaint. They do not add any new matter and therefore do not fail for lack of details or facts. Thus, the Demurrer to these defenses is OVERRULED. The demurrer to the forty-third affirmative defense (workers compensation is exclusive remedy), forty-sixth affirmative defense (ERISA is the exclusive remedy) and forty-seventh affirmative defense (recovery limited to actual plan benefits) is OVERRULED. While these defenses add new matter, the facts pled are sufficient. The demurrer to Defendant's fifty-first affirmative defense (defenses yet to be identified) is OVERRULED. The inclusion of an "affirmative defense" asserting the right to amend the pleading is common and, ultimately, harmless: "[N]o error or defect in a pleading is to be regarded unless it affects substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240). "The primary function of a pleading is to give the other party notice so that it may prepare its case...and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Ibid.) Plaintiff to give notice.
103	Elevated Health, Inc. vs. AETNA Health of California Inc. 25-01516102	1. Demurrer to First Amended Complaint 2. Motion to Appear Pro Hac Vice Defendant Aetna Health of California, Inc. ("Aetna" or "Defendant") demurs to the First Amended Complaint